

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X Index No: 506539/2020

J.D. AN INFANT UNDER THE AGE OF 16
YEARS BY HIS MOTHER AND NATURAL
GUARDIAN, AISHA DAY AND AISHA DAY
INDIVIDUALLY, JOSHUA KING, JUSTIN KING
Plaintiffs, :

against :

: AMENDED SUMMONS

CITY OF NEW YORK, OFFICER RODRIGUEZ
OFFICER GALLOWAY, OFFICER SMITH,
OFFICER JEROME J. BOONE (SHIELD
#27034), DOES 1-10 :
Defendant(s)

-----X

THE PLAINTIFFS DESIGNATES KINGS COUNTY AS THE PLACE OF TRIAL.

THE BASIS OF THE VENUE IS LOCATION OF INCIDENT

To the Above-Named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, on the Plaintiffs' attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: November 9, 2023
New York, New York

s/
Uwem Umoh, Esq.
Attorney for Plaintiff
90 Broad St, 10th Floor
New York, NY 10004
(718) 360-0527

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COUNTY OF KINGS**

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J.D. AN INFANT UNDER THE AGE OF 16
YEARS BY HIS MOTHER AND NATURAL
GUARDIAN, AISHA DAY AND AISHA DAY
INDIVIDUALLY, JOSHUA KING, JUSTIN KING

Plaintiffs, :

against :

AMENDED COMPLAINT

CITY OF NEW YORK, OFFICER RODRIGUEZ
OFFICER GALLOWAY, OFFICER SMITH,
OFFICER JEROME J. BOONE (SHIELD
#27034), DOES 1-10 :

Defendant(s)

-----X

TAKE NOTICE, the Plaintiffs, AISHA DAY, J.D., JOSHUA KING and JUSTINE KING, hereby appears in this action by his attorneys, Umoh Law Firm, and demands that all papers be served upon them, at the address below, in this matter.

Plaintiffs, AISHA DAY, J.D., JOSHUA KING and JUSTINE KING, by their attorney, Nkereuwem Umoh Esq., complaining of the defendants, The City of New York, Officer Rodriguez, Officer Galloway, Officer Smith, Officer Jerome J. Boone (Shield #27034) and "Does" collectively referred to as the Defendants, upon information and belief alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985], [and arising under the law and statutes of the State of New York].
2. This is an action to further seek compensation for the serious and permanent personal injuries sustained by the plaintiff, as a result of the negligence of the defendants, perpetrated while said defendant police officers were in the process of illegally and unlawfully arresting plaintiff.

PARTIES

3. Plaintiffs AISHA DAY, J.D., JOSHUA KING and JUSTINE KING reside in Brooklyn, New York and are residents of the State of New York.
4. Defendant Police Officers Officer Rodriguez, Officer Galloway, Officer Smith, Officer Jerome J. Boone, and John Does are, and at all times relevant to this action, were officers employed by the City of New York and acting under color of state law. Said officers are being sued in both their individual and official capacities.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

5. On or about March 16, 2017 at 725 Greene Avenue in Brooklyn, New York, the defendant police officers entered the plaintiffs' home at approximately 4am. Though no resistance was given to their presence, the officers pointed guns at the plaintiff, including the minor children.
6. The defendant punched and kicked the Aisha Day during her arrest and forced her to strip search in front of a male officer.

A gun was pointed at the head of Aisha Day. And guns were pointed at the minor children while they slept. The plaintiffs were subsequently removed from their beds and handcuffed for 8 hours, until noon, when they officers were leaving.

Plaintiff's home was ransacked and her second home, located at 553 East 108th Street, Brooklyn NY, was searched and \$15,000 cash and jewelry was stolen by the officers.

7. No charges were brought against plaintiffs. Aisha Day was threatened that if she did not sign a document she would be arrested, so she signed the document.
8. That at no time during plaintiffs' detention, was plaintiff read their Miranda rights.

9. At no time did plaintiff commit any offense against the laws of New York City and or State for which an arrest may be lawfully made. At no time did the plaintiff trespass at the alleged property or commit any illegal acts, or engage in any conduct which in any way justified the brutal and unlawful actions of the police.
10. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer injuries, including but not limited to emotional distress, nightmares, panic attacks, mental anguish and unwarranted severe anger bouts some or all of which may be permanent.
11. The unlawful arrest of plaintiff, plaintiff's wrongful imprisonment and excessive force with lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.
12. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer, mental anguish, repetitive injury, psychological and emotional distress, and physical pain and suffering, some or all of which may be permanent.
13. As a direct and proximate result of their unlawful detention, assault, confinement, Plaintiffs have lived in terror of their attack, and continues to suffer from nightmares, are fearful of going outside and when they sees the police, and suffer various emotional attacks, in addition, and have been unable to function normally which has caused a severe strain and breakdown in their personal relationships, in and outside of the home.
14. As a direct and proximate result of defendant's actions, plaintiffs were arrested, detained without just or probable cause.
15. As a direct and proximate result of defendants' actions, plaintiffs were deprived of rights, privileges, and immunities under the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the City of New York and the State of New York.
16. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including

the defendants in this case, for violations of the constitutional rights of citizens, thereby causing police officers including defendants in this case, to engage in unlawful conduct.

17. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to sanction or discipline police officers including the defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers including defendants in this case, to engage in unlawful conduct.
18. The actions of defendants, acting under color of State law, deprived plaintiffs of their rights, privileges and immunities under the laws and Constitution of the United States; in particular, the rights to be secure in his person and property, to be free from the excessive use of force and from malicious prosecution, abuse of process, and the right to due process.
19. By these actions, defendants have deprived plaintiffs of rights secured by the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983.

AS A FIRST CAUSE OF ACTION:

42 U.S.C Section 1983

20. Plaintiff hereby restates all paragraphs above of this complaint, as though fully set forth below
21. By detaining and imprisoning plaintiffs, without justification, probable cause or reasonable suspicion, the Officers, Defendants deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.
22. In addition, the Defendant officers conspired among themselves to deprive plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, fifth, Eighth and Fourteenth Amendments to United

States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

23. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.
24. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A SECOND CAUSE OF ACTION:

42 U.S.C Section 1983

25. Plaintiffs hereby restate all paragraphs above of this complaint, as though fully set forth below
26. By using excessive force without justification, probable cause, the Defendants deprived Plaintiffs of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.
27. In addition, the Defendant officers and district attorney conspired among themselves to deprive plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Fifth, Eighth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
28. The defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as agents of the City of New York. Said acts by the defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted

willfully, knowingly, and with the specific intent to deprive the plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

29. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A THIRD CAUSE OF ACTION:

New York State Constitution, Art. 1 Section 12

34. Plaintiff hereby restates all paragraphs of this complaint, as though fully set forth below
35. By detaining and imprisoning plaintiffs, without probable cause or reasonable suspicion, using excessive force, and assaulting them, the Defendant Officers deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.
36. In addition, the Defendant Officers conspired among themselves to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
37. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of his constitutional rights secured by Article 1, Section 12 of the New York Constitution.
38. Defendants, their officers, attorneys, agents, servants, and employees were responsible for Plaintiffs' deprivation of his state constitutional rights. Defendant City, as employer of each of the Officer Defendants, is responsible for their wrongdoing under the doctrine of respondent superior.

39. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before alleged.

AS A FOURTH CAUSE OF ACTION:

New York State Constitution, Art. 1 Section 12

40. Plaintiff hereby restates all paragraphs of this complaint, as though fully set forth below
41. By employing excessive force against plaintiffs, without probable cause or reasonable suspicion, using excessive force, and assaulting them, the Defendant Officers deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.
42. In addition, the Defendant Officers conspired among themselves to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
43. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of his constitutional rights secured by Article 1, Section 12 of the New York Constitution.
44. Defendants, their officers, attorneys, agents, servants, and employees were responsible for Plaintiff's deprivation of his state constitutional rights. Defendant City, as employer of each of the Officer Defendants, is responsible for their wrongdoing under the doctrine of respondent superior.
45. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before alleged.

AS A FIFTH CAUSE OF ACTION:

42 U.S.C Section 1983

46. Plaintiffs hereby restate all paragraphs of this complaint, as though fully set forth below
42. By Unlawfully searching the plaintiffs' home, the defendants violated plaintiffs' rights as secured by the Fourth, and Fifth Amendments. That the unlawfully seizure of plaintiff's jewelry, \$15,000 in cash and destruction of her property at her second home 553 East 108th Street, Brooklyn, NY, was unlawful.
43. As a direct and proximate result of the misconduct and abuse of authority detained above, Plaintiffs sustained the damages hereinbefore stated.

AS A SIXTH CAUSE OF ACTION:

New York State Constitution, Art. 1 Section 12

40. Plaintiff hereby restates all paragraphs of this complaint, as though fully set forth below
41. By employing excessive force against plaintiffs, without probable cause or reasonable suspicion, using excessive force, and assaulting them, the Defendant Officers deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.
42. In addition, the Defendant Officers conspired among themselves to deprive plaintiffs of their constitutional rights secured by Article 1, Section 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
43. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of his constitutional rights secured

by Article 1, Section 12 of the New York Constitution.

44. Defendants, their officers, attorneys, agents, servants and employees were responsible for Plaintiff's deprivation of his state constitutional rights. Defendant City, as employer of each of the Officer Defendants, is responsible for their wrongdoing under the doctrine of respondent superior.
45. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before alleged.

WHEREFORE, plaintiffs respectfully requests judgment against the Defendants as follows:

1. On the First Cause of Action against all the defendants, compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988;
2. On the Second Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Officers Defendants in an amount to be determined at trial;
3. On the Third Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Officers Defendants in an amount to be determined at trial;
4. On the Fourth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Officers Defendants in an amount to be determined at trial;
5. On the Fifth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Officers Defendants in an amount to be determined at trial;
6. On the Sixth Cause of Action, against the City of New York, compensatory damages in an amount to be determined at trial; and

7. Such other and further relief as this Court may deem necessary in the interest of justice.

Dated: November 9, 2023
New York, New York

Respectfully Submitted,

/s/

By: UWEM UMOH Esq
90 Broad St, 10th Floor
New York, New York 10004
Tel: (718) 360-0527